

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

----- x

RODDRICK INGRAM,

Plaintiff,

-against-

**FIRST AMENDED
COMPLAINT**

THE CITY OF NEW YORK, DETECTIVE FAWAD
KHAN, tax # 925537, DETECTIVE VINCENT BARESE,
tax # 927899, DETECTIVE JAMES DELUMEN, tax #
922213, DETECTIVE ANDREW ERATO, tax # 925243,
DETECTIVE FRANK GALATI, tax # 928335,
DETECTIVE EDWARD MERCADO, tax # 930726,
DETECTIVE MATTHEW SAVAGE, tax # 926077,
SERGEANT DANIEL SBARRA, tax # 920813, CAPTAIN
MICHAEL LIPETRI, tax # 906647, LIEUTENANT
JOSEPH SANTANGELO (retired),

11 CV 2696 (NGG) (VVP)

Jury Trial Demanded

Defendants.

----- x

PRELIMINARY STATEMENT

1. Plaintiff brings this civil rights action against the City of New York and several New York City Police Officers of Narcotics Borough Brooklyn South alleging that, beginning on February 5, 2009, defendants violated his rights under 42 U.S.C. § 1983, the Fourth and Sixth Amendments to the United States Constitution and New York state law by falsely arresting him for a narcotics offense, using excessive force against him, illegally strip searching him, fabricating evidence against him and maliciously prosecuting him. After spending approximately 17 months at Rikers Island Correctional Facility, plaintiff was released from custody in July 2010. On November 15, 2010, the criminal charges were dismissed on the ground that plaintiff was denied a speedy trial. Plaintiff seeks compensatory and punitive damages, attorney's fees and costs and such other and further relief as the court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and the Fourth and Sixth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343.

3. Plaintiff invokes the supplemental jurisdiction of this Court pursuant to 28 U.S.C. § 1367 to hear and decide his New York state law claim of malicious prosecution and vicarious liability which form part of the same case and controversy as his federal claims under Article III of the United States Constitution.

4. With respect to plaintiff's state law claims, a notice of claim was duly filed with the City of New York within 90 day of the dismissal of the criminal charges on November 15, 2010, more than 30 days have elapsed since such filing and the City has not offered to settle plaintiff's state law claims.

5. Venue is proper in the Eastern District of New York pursuant to 28 U.S.C. § 1391(b) and (c) because a substantial part of the events giving rise to plaintiff's claims occurred in this District and because some or all of the defendants reside in this District.

PARTIES

6. Plaintiff is a United States citizen who resides in Brooklyn.

7. The City of New York is a municipal corporation organized under the laws of the State of New York.

8. The individual defendants named in the caption are New York City Police Officers who were employed in Narcotics Borough Brooklyn South when plaintiff's rights were violated. Defendants were acting under color of state law and in their capacities as New York City Police Officers at all relevant times. Defendants are liable for directly participating in the

unlawful acts described herein and for failing to intervene to protect plaintiff from unconstitutional conduct. The defendants are sued in their individual capacities.

STATEMENT OF FACTS

9. On February 5, 2009, at approximately 7:00 p.m., plaintiff entered the apartment of Herbert Curtis, a friend, to use his shower because plaintiff had only cold water in his home.

10. Curtis' apartment is located on the second floor of 753 Monroe Street in Brooklyn.

11. On February 5, 2009, plaintiff lived with his mother (who is presently a police officer in Maryland) at 631 Decatur Street in Brooklyn.

12. At approximately 7:30 p.m., while plaintiff was drying his hair, the defendants forcefully entered the home.

13. Although plaintiff had nothing illegal on his person and did not know whether there was anything illegal in Curtis' home, defendants ordered plaintiff to get on the ground and arrested him.

14. One of the male, white defendants unnecessarily pushed his knee into plaintiff's back and handcuffed him excessively tight causing pain and bruising.

15. Plaintiff asked several of the defendants to loosen the cuffs, but they refused.

16. Approximately 15 minutes later, the defendants put the tightly handcuffed plaintiff in a van and initially did not allow him to put on his jacket although it was winter.

17. Defendants finally gave plaintiff his jacket and took plaintiff to the 81st Precinct.

18. Inside the precinct, several of the defendants verbally abused plaintiff, used profanity toward him and told him he was going to jail for life.

19. A short time later, two of the defendants, with the acquiescence of the other defendants, illegally strip searched plaintiff in a cell.

20. Plaintiff was ordered to remove his clothes, squat, bend over, spread his buttocks and cough.

21. Nothing illegal was found on plaintiff.

22. After the strip search, some of the defendants interrogated plaintiff about unrelated matters.

23. While plaintiff was held in the cell in the precinct, his designated “arresting officer,” with the acquiescence of the other defendants, misrepresented in police reports that plaintiff was found in possession of narcotics.

24. Later that night, officers took plaintiff to Manhattan Central Booking.

25. While plaintiff was held in Central Booking, his designated arresting officer, with the acquiescence of the other defendants, misrepresented to the Office of the Special Narcotics Prosecutor that plaintiff was found in possession of narcotics.

26. Defendants’ purposes in commencing a bogus prosecution against plaintiff was to have plaintiff convicted of and punished for crimes he did not commit, to obtain overtime compensation and to obtain credit for an arrest.

27. On February 6, 2009, plaintiff was arraigned in Criminal Court, New York County.

28. The presiding judge set bail in the amount of \$10,000.

29. Plaintiff was taken to Rikers Island Correctional Facility.

30. While being admitted into Rikers, correction officers illegally strip searched plaintiff in front of other inmates.

31. Subsequent to plaintiff's arraignment, some of the defendants, including plaintiff's designated "arresting officer," testified in the Grand Jury as witnesses for the prosecution.

32. The defendants who testified in the Grand Jury gave false testimony that plaintiff was found in possession of narcotics.

33. Defendants' false testimony resulted in an indictment against plaintiff.

34. After spending approximately 17 months at Rikers Island, plaintiff was released from custody in July 2010.

35. On November 15, 2010, the criminal charges were dismissed on the ground that plaintiff was denied a speedy trial.

36. Plaintiff suffered damage as a result of defendants' actions. Plaintiff was incarcerated for approximately 17 months and suffered emotional distress, fear, anxiety, humiliation and pain and bruising.

FIRST CLAIM

(FALSE ARREST)

37. Plaintiff repeats the foregoing allegations.

38. At all relevant times, plaintiff had not committed a crime or violation, he was not wanted for a crime or violation and he had not acted in a suspicious manner.

39. Despite plaintiff's innocence, the defendants arrested plaintiff or failed to intervene to prevent his false arrest.

40. Accordingly, defendants are liable to plaintiff under the Fourth Amendment for false arrest.

SECOND CLAIM

(UNREASONABLE FORCE)

41. Plaintiff repeats the foregoing allegations.

42. Defendants' use of force upon plaintiff or their failure to intervene to prevent the use of force on him, as described herein, was objectively unreasonable and caused plaintiff pain and injury.

43. Accordingly, defendants are liable to plaintiff under the Fourth Amendment for using unreasonable force on him.

THIRD CLAIM

(ILLEGAL STRIP SEARCH)

44. Plaintiff repeats the foregoing allegations.

45. Defendants' strip search of plaintiff or their failure to intervene to stop the search was illegal because plaintiff had not committed a crime and because no officer had reasonable suspicion to believe that plaintiff was hiding illegal items under his clothes.

46. Accordingly, defendants are liable to plaintiff under the Fourth Amendment for illegally strip searching him.

FOURTH CLAIM

(DENIAL OF A FAIR TRIAL)

47. Plaintiff repeats the foregoing allegations.

48. Plaintiff's designated arresting officer, with the acquiescence of the other defendants, maliciously misrepresented to the Office of the Special Narcotics Prosecutor and to the Grand Jury that plaintiff had committed a narcotics offense.

49. Defendants' misrepresentation deprived plaintiff of liberty in that he was incarcerated for approximately 17 months.

50. Accordingly, defendants are liable to plaintiff under the Sixth Amendment for denying him a fair trial.

FIFTH CLAIM

(MALICIOUS PROSECUTION UNDER FEDERAL LAW)

51. Plaintiff repeats the foregoing allegations.

52. Plaintiff's designated arresting officer, with the acquiescence of the other defendants, maliciously misrepresented to the Office of the Special Narcotics Prosecutor and to the Grand Jury that plaintiff had committed a narcotics offense.

53. Defendants' misrepresentations deprived plaintiff of liberty in that he was incarcerated for approximately 17 months.

54. The charges filed against plaintiff were ultimately dismissed.

55. Accordingly, defendants are liable to plaintiff under the Fourth Amendment for malicious prosecution.

SIXTH CLAIM

(MALICIOUS PROSECUTION UNDER STATE LAW)

56. Plaintiff repeats the foregoing allegations.

57. Plaintiff's designated arresting officer, with the acquiescence of the other defendants, maliciously misrepresented to the Office of the Special Narcotics Prosecutor and to the Grand Jury that plaintiff had committed a narcotics offense.

58. The charges filed against plaintiff were ultimately dismissed on the merits.

59. Accordingly, defendants are liable to plaintiff under New York state law for malicious prosecution.

SEVENTH CLAIM

(*MONELL CLAIM AGAINST THE CITY OF NEW YORK*)

60. Plaintiff repeats the foregoing allegations.

61. The City of New York is a “person” within the meaning of 42 U.S.C. § 1983.

62. The City of New York, through a policy, practice or custom, directly caused the constitutional violations suffered by plaintiff.

63. Upon information and belief, the City of New York, at all relevant times, was aware that the defendants and other members of the NYPD are unfit officers who have previously committed acts similar to those alleged herein, have a propensity for unconstitutional conduct and/or have been inadequately trained.

64. Several members of the NYPD, especially narcotics officers, have been convicted of crimes for engaging in corruption and for making false allegations against arrestees.

65. Former NYPD Commissioner Bernard Kerik was convicted of corruption-related crimes in federal and state court and served time in federal prison.

66. In 2011, former NYPD narcotics officer Jerry Bowen was convicted of murder and attempted murder while he was under indictment for corruption.

67. In *Colon v. City of New York*, Nos. 09 CV 8, 09 CV 9 (JBW), 2009 WL 4263362 (E.D.N.Y. November 25, 2009), the federal court stated that an “[in]formal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and

state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department.”

68. Despite the above, the City exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline and monitor the defendants and other officers like them.

69. The City’s failure to act resulted in the violation of plaintiff’s constitutional rights as described herein.

EIGHTH CLAIM

(VICARIOUS LIABILITY CLAIM AGAINST CITY OF NEW YORK)

70. Plaintiff repeats the foregoing allegations.

71. Defendants were acting within the scope of their employment as New York City Police Officers when they maliciously prosecuted plaintiff.

72. Accordingly, the City of New York is vicariously liable to plaintiff under New York state law for malicious prosecution.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Attorney’s fees and costs;
- d. Such other and further relief as the Court may deem just and proper.

DATED: January 13, 2012

/S/

RICHARD CARDINALE
Attorney at Law
26 Court Street, Suite # 1815
Brooklyn, New York 11242
(718) 624-9391